

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LUCIA WATERMAN,

Petitioner

VS.

MATTHEW CHARLES,

Respondent

) Case Number: FPT-25-378598

) Hearing Date: August 11, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE RECONSIDERATION OF THE 6/9/26 ORDER DENYING
RESPONDENTS REQUEST FOR ATTORNEYS FEES AND COSTS

TENTATIVE RULING

This hearing was continued to 9/29/26 by agreement of the parties. **No appearances are required on 8/11/26.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ERICA PLAM,

Petitioner

VS.

ERIC HUDSON PLAM,

Respondent

) Case Number: FDI-22-796258

) Hearing Date: August 11, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: RECONSIDERATION OF 6/17/26 JEEP ORDER

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Erica Plam and Respondent Eric Plam.
- 2) At the prior 5/19/26 hearing, Visiting Judge Kathleen Diesman issued orders regarding the distribution of funds from the net sale proceeds of the parties' San Francisco property, which remained in counsel for Petitioner's client trust account. This order included an award of \$25,201 to Respondent for the Jeep settlement refund from Petitioner's share of the funds. See Findings and Order After Hearing (FOAH) filed 6/17/26.
- 3) On 6/30/26, Petitioner filed a Motion for Reconsideration of the Court's 5/19/26 order (filed 6/17/26). Petitioner requests the Court reconsider awarding Respondent \$25,201 for the Jeep settlement refund from Petitioner's share of the funds under Code of Civil Procedure section 1008. Petitioner argues that that the Court mischaracterized the Jeep as Respondent's separate property in its Final Statement of Decision (filed 10/7/25).
- 4) On 7/24/26, Petitioner filed a Supplemental Declaration in support of the Motion for Reconsideration attaching the official Reporter's Transcript from the 5/19/26 hearing.

1 5) On 7/29/26, Respondent filed a Responsive Declaration in opposition to Petitioner's Motion for
2 Reconsideration. Respondent asserts that the \$25,201 obligation originates from the Final
3 Statement of Decision (filed 10/7/25), not the Court's 5/19/26 order (filed 6/17/26). Respondent
4 requests the Court disregard or strike Petitioner's 7/24/26 Supplemental Declaration. Respondent
5 seeks an order compelling counsel for Petitioner to release the \$25,201 to Respondent within 3
6 court days of the hearing with 10% interest accruing from 7/20/26. Respondent requests the Court
7 reserve jurisdiction over Family Code section 271 sanctions against Petitioner.

8 **B. Findings and Order**

- 9 1) The Court could decline to consider Petitioner's 7/24/26 Supplemental Declaration as the rules do
10 not provide for the filing of such a pleading; however, the Court finds doing so would not alter
11 the Court's Code of Civil Procedure section 1008 analysis. The Court therefore considered
12 Petitioner's 7/24/26 Supplemental Declaration.
- 13 2) Per Code of Civil Procedure section 1008(a), "When an application for an order has been made to
14 a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on
15 terms, any party affected by the order may, within 10 days after service upon the party of written
16 notice of entry of the order and based upon new or different facts, circumstances, or law, make
17 application to the same judge or court that made the order, to reconsider the matter and modify,
18 amend, or revoke the prior order. The party making the application shall state by affidavit what
19 application was made before, when and to what judge, what order or decisions were made, and
20 what new or different facts, circumstances, or law are claimed to be shown."
- 21 3) Petitioner's Motion for Reconsideration is within the 10-day window allowed under Code of
22 Civil Procedure Section 1008.
- 23 4) Petitioner requests the Court reconsider awarding Respondent \$25,201 for the Jeep settlement
24 refund from Petitioner's share of funds from the net sale proceeds of the parties' San Francisco
25 property. However, the Court's 5/19/26 order (filed 6/17/26) is simply an enforcement order. In
26 effect, Petitioner seeks reconsideration of the Court's Final Statement of Decision (filed 10/7/25),
27 which characterized the Jeep as Respondent's separate property. Such relief is neither available
28 under Code of Civil procedure section 1008 nor would result from reconsideration of the Court's
29 5/19/26 order (filed 6/17/26).

- 1 5) Further, the Court finds Petitioner did not present evidence of new or different facts or
- 2 circumstances or change in law warranting reconsideration of the Court's 5/19/26 order (filed
- 3 6/17/26).
- 4 6) Accordingly, Petitioner's Motion for Reconsideration is DENIED.
- 5 7) Counsel for Petitioner shall release the \$25,201 to Respondent within 3 court days of the hearing
- 6 with 10% interest accruing from 7/20/26.
- 7 8) The Court reserves jurisdiction over Family Code section 271 sanctions against Petitioner.
- 8 9) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RANDALL SCOTT SHOUP,

Petitioner

VS.

KATHERINE BUXTON REILLY,

Respondent

) Case Number: FDI-22-797054

) Hearing Date: August 11, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Randall Scott Shoup and Respondent Katherine Buxton Reilly.
- 2) On 5/26/26, Respondent filed a Request for Order seeking \$211,000 in Family Code section 2030 attorney's fees and costs. Respondent asserts a significant disparity in income and access to funds. Respondent states that to date she received \$24,812 in attorney's fees and costs from Petitioner.
- 3) On 5/26/26, Respondent filed an Income and Expense Declaration.
- 4) On 5/26/26, counsel for Respondent filed a declaration substantiating her request, which states the total attorney's fees and costs billed as of 4/30/26 is \$50,758 (plus a sum of \$6,000 not yet billed). Respondent requests attorney's fees and costs in the amount of \$161,000, forensic accounting fees in the amount of \$30,000 and expert construction consulting fees in the amount of \$20,000 for a total award of \$211,000.
- 5) On 5/26/26, Respondent filed a Memorandum of Points and Authorities.
- 6) On 5/26/26, Respondent filed Declaration of Lisa Jolicoeur in Support of Expert Fees and Costs.

1 7) On 6/10/26, Respondent filed Declaration of David Tillotson in Support of Attorney Fees and
2 Costs.

3 8) On 6/11/26, Respondent filed Notice of Association of Counsel.

4 9) On 7/29/26, Petitioner filed a Responsive Declaration in opposition to Respondent's Request for
5 Order. Respondent requests the Court deny Petitioner's request or reserve the issue for trial,
6 alleging that Respondent allowed significant waste to occur at the parties' marital residence in
7 breach of her fiduciary duty, which is the cause of increased fees.

8 10) On 7/29/26, Petitioner filed an Income and Expense Declaration which states Petitioner paid
9 approximately \$140,956 in attorney's fees and costs and \$30,000 in experts fees to date and still
10 owes \$1,092.

11 11) On 8/4/26, Respondent filed a Reply Declaration disputing Petitioner's claim and reiterating her
12 request for \$211,000 under Family Code section 2030.

13 12) On 8/4/25, counsel for Respondent filed a declaration substantiating her request, which states that
14 Respondent has incurred an additional \$17,218.75 in attorney's fees and \$2,962.80 in costs
15 through 7/31/26.

16 **B. Findings and Order**

17 1) Respondent's request for Family Code section 2030 attorney's fees is GRANTED in the amount
18 of \$105,500.

19 2) The Court finds an award of attorney's fees and costs is appropriate here because there is a
20 demonstrated disparity between the parties in access to funds to maintain counsel and in the
21 ability to pay for legal representation.

22 3) The Court further finds that Petitioner has or is reasonably likely to have the ability to pay for
23 legal representation for both parties.

24 4) \$105,500 in attorney's fees and costs is reasonable and necessary based on the facts and equities of
25 this case.

26 5) Petitioner shall pay \$26,375 to Respondent on the 1st of each month commencing 9/1/26 until
27 this balance is paid in full. No interest will accrue as long as payments are timely made.

28 6) Counsel for Respondent shall prepare the Findings and Order After Hearing.
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1 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
2 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
3 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
4 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
5 proposed order after hearing directly to the court. Failure to submit the order after hearing within
6 10 days may allow the other party to prepare a proposed order and submit it to the court in
7 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ISMARA ZUGUEY MENDOZA AMEZCUA,

Petitioner

VS.

EMMANUEL ROBERTO MENDOZA

GONZALEZ,

Respondent

) Case Number: FDI-22-797316

) Hearing Date: August 11, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME),
CHILD SUPPORT, IN THE ALTERNATIVE SET ASIDE DEFAULT JUDGMENT PER CCP 473.5

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Ismara Amezcua (Mother) and Respondent Emmanuel Gonzalez (Father). They share one minor child named Yaretzi Mendoza (08/16/20).
- 2) On May 15, 2026, Father filed a Request for Order in which he seeks the following orders:
 - a. Set Aside Default Judgment entered on 04/07/25; or, in the alternative
 - b. Modification of Child Custody;
 - c. Modification of Visitation; and
 - d. Modification of Child Support (DCSS is involved in this action).
- 3) On May 15, 2026, Father filed an Income and Expense Declaration.
- 4) On June 18, 2026, Mother filed a Responsive Declaration in which she is asking this Court to deny all of the relief requested by Father.

- 1 5) On June 12, 2026, a Declaration was filed by Process Server, Wilfredo Mendez, who has declared
2 under penalty of perjury that he served Father in Court after a hearing conducted on January 12,
3 2023.

4 **B. Findings and Order**

- 5 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
6 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
7 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
8 child(ren) is the United States.
- 9 2) Father's motion to set aside the default Judgment entered on April 7, 2025 is DENIED.
- 10 3) Father's request to modify the existing child custody and visitation orders is DENIED. Father has
11 not provided this Court with any evidence that he has taken any steps towards resolving the issues
12 which led to the issuance of the juvenile court's child custody and visitation orders. As such,
13 there is no change in circumstance warranting a modification at this time.
- 14 4) Father's request to modify child support is continued to Department 414 to be heard on the
15 Court's Department of Child Support Services (DCSS) calendar as DCSS is involved in the case.
16 Father's request to modify child support is therefore **continued to September 15th at 8:30 a.m.,**
17 **in Department 414.**
- 18 5) All existing orders, not in conflict with the orders made herein, remain in full force and effect.
- 19 6) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MICHELLE CHI,

Petitioner

VS.

ARLAN TOKUGAWA,

Respondent

) Case Number: FDI-23-798517

) Hearing Date: August 11, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: CHANGE OF CHOICE OF SCHOOL

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

1) The parties are Petitioner Michelle Chi (Mother) and Respondent Arlan Tokugawa (Father).

They share one minor child named Sora Hana Tokugawa (10/15/21).

2) On May 14, 2026, Mother filed a Request for Order in which she seeks the following orders:

- a. An order allowing her to enroll the minor child in a TK program at St. Cecilia School for the 2026-2027 academic year and continuing until the 8th grade;
- b. Allocation of tuition and related expenses in a fair and equitable manner;
- c. Tie-breaking authority regarding educational decision should a dispute arise; and
- d. Any further relief the Court deems necessary and just.

3) On June 29, 2026, the Court conducted a “Readiness” and referred the matter to FCS Mediation to occur on July 29, 2026 and set a return hearing for August 11, 2026.

4) On July 29, 2026, the parties participated in FCS Mediation and were unable to reach an agreement.

1 5) On July 29, 2026, Father filed a Responsive Declaration, which has been read and considered by
2 the Court.

3 **B. Findings and Order**

4 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
5 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
6 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
7 child(ren) is the United States.

8 2) The Court DENIES Mother's request for an order that she be permitted to enroll the minor child
9 at St. Cecilia School for the academic 2026-2027 school year.

10 3) The Court DENIES Mother's request for an allocation of tuition and related expenses, without
11 prejudice.

12 4) The Court DENIES Mother's request for tie-breaking authority regarding educational decisions.

13 5) The Court GRANTS Father's request for an order that the minor child, Sora Hana Tokugawa
14 (10/15/21) be permitted to attend Lafayette Elementary School for the academic 2026-2027
15 academic year and continuing until the 5th grade.

16 6) Mother shall cooperate in executing any and all documentation required to effectuate the Court's
17 orders.

18 7) Any and all prior orders, not in conflict with the orders made herein, shall remain in full force and
19 effect.

20 8) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KAYLA FLORES,

Petitioner

VS.

JEFFREY BRADFORD MARSHALL-NAIL,

Respondent

) Case Number: FDI-25-801160

) Hearing Date: August 11, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Kalya Flores (Mother) and Respondent Jeffery Bradford Marshall-Nail (Father). They share two minor children: Mireia (DOB: 12/24/20) and Dorothy (DOB: 02/03/22).
- 2) On September 2, 2025, the matter was before this Court on Mother's Request for Order seeking sole legal and sole physical custody of the minor children with no visitation to Father.
- 3) The Court ordered Tier II interviews of:
 - a. San Joaquin County CPS worker Vanessa;
 - b. Father's Psychiatrist, Dr. Malisham, at the Stockton Veterans Administration; and
 - c. Father's Therapist.
- 4) The Court also ordered that Father have supervised visits at Rally Family Services (Rally) for 1 hour per week and set a review hearing for 12/04/25.

- 1 5) On November 26, 2025, Family Court Services (FCS) completed and submitted a Tier II report,
2 which has been read and considered by the Court. The Court is troubled that no response was
3 received from Dr. Viveros and Dr. Malisham (due to his retirement).
- 4 6) On December 4, 2025, the Court appointed Minor's Counsel and continued the matter to March
5 5, 2026 for review of Minor's Counsel's report.
- 6 7) On March 5, 2026, the matter was heard and – after Minor's Counsel's oral update to the Court –
7 the Court found good cause to continue the matter to June 4, 2026 to allow Minor's Counsel time
8 to provide further report of progress.
- 9 8) As of the Court's review on May 31, 2026, the Court had not received update declarations from
10 either party or an update from Minor's Counsel.
- 11 9) On June 4, 2026, the matter was heard, and the Court issued the following orders:
- 12 a. Both parties shall sign up for the "Talking Parents" app within 72 hours.
- 13 b. Father shall have a 1-hour video visit every Tuesday from 8:00 a.m. – 9:00 a.m., and
14 every Friday from 7:00 a.m. – 8:00 a.m., until the next review hearing.
- 15 c. Father shall continue to have a 1-hour weekly in-person Rally supervised visits.
- 16 d. Matter continued to August 11, 2026 at 9:00 a.m., in Department 403 for further review
17 hearing.

18 **B. Findings and Order**

- 19 1) **The parties are ordered to appear.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ZHENIA MEDINA GUTIERREZ,

Petitioner

VS.

MARTIN JOEL QUIROZ IBANEZ,

Respondent

) Case Number: FDI-25-801424

) Hearing Date: August 11, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME), VEHICLE AS
COMMUNITY PROPERTY; REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION
(PARENTING TIME), VEHICLE AS COMMUNITY PROPERTY

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Zhenia Medina Gutierrez (Mother) and Respondent Martin Joel Quiroz Ibanez (Father). They share one minor child named Bruno J. Quiroz Medina (12/07/16).
- 2) On April 20, 2026, Father filed a Request for Order seeking initial child custody and visitation orders and an order that the Court deny Petitioner's request that a 2016 Toyota Corolla be considered community property.
- 3) On June 8, 2026, the parties Father appeared at "Readiness" calendar, but Mother did not. The Court continued the matter to June 22, 2026 to allow Mother to appear in Court.
- 4) On June 22, 2026, the Court conducted its "Readiness" hearing. The Court referred the parties to FCS Mediation to occur on July 22, 2026 and set the matter for review hearing on August 11, 2026.
- 5) The Court notes that Mother has not served and filed a Responsive Declaration.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.
- 2) The Court DENIES (without prejudice) Respondent's request to declare the 2016 Toyota Corolla a separate property asset. This is an issue for trial. The Court will adjudicate this issue, at the time of the final trial in this matter.
- 3) The parties shall share Joint Legal and Joint Physical Custody of the minor child.
- 4) Father's parenting time shall be on the 1st, 3rd and 5th weekends of each month from Friday after school (if no school, 4:00 p.m.) through Monday morning drop of the child at school. Father to provide the transportation to and from his parenting time.
- 5) Father shall also have parenting time with the minor child every Wednesday from after school until 7:30 p.m. Father shall provide the transportation to and from his parenting time.
- 6) Mother shall have care and custody of the minor child during all other times.
- 7) The parties shall meet and confer to develop a Holiday schedule for their parenting time. If they are unable to do so, either of them may file a Request for Order seeking the Court's assistance in developing a Holiday schedule.
- 8) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MEGAN NIENHUIS JOHNSON,

Petitioner

VS.

MATTHEW ERIC JOHNSON,

Respondent

) Case Number: FDI-26-803108

) Hearing Date: August 11, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: SPOUSAL OR PARTNER SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Megan Nienhuis Johnson (Wife) and Respondent Matthew Eric Johnson (Husband). There are no minor children subject to this proceeding.
- 2) On 6/4/26, Wife filed a Petition for Dissolution. Wife states that the parties married on 10/20/12 and separated on 7/25/25 for a marriage of 12 years 9 months.
- 3) On 6/23/26, Wife filed a Request for Order seeking temporary spousal support of \$1,500 per month. Wife states she believes that Husband's gross monthly income is about \$5,617.50 and that he nets a surplus of \$4,256.08 per month.
- 4) On 6/23/26, Wife filed an Income and Expense Declaration.
- 5) On 6/23/26, Wife filed a Declaration Statement of Support Calculations.
- 6) On 7/13/26, Wife filed a Declaration in Support of Request for Order for Spousal Support (Index of Evidence).
- 7) On 7/22/26, Husband filed a Response and Request for Dissolution. Respondent states the date of marriage is 10/20/12 and agrees that the parties were married for 12 years 9 months.

1 8) On 8/5/26, Husband filed a Responsive Declaration in opposition to Wife's Request for Order.
2 Husband states that he is unable to pay temporary spousal support because he was laid off from
3 his job on 7/1/26 and has not yet found new employment.

4 9) On 8/5/26, Husband filed an Income and Expense Declaration indicating he receives \$1,950 in
5 unemployment compensation.

6 **B. Findings and Order**

7 1) "Awards of temporary spousal support rest within the broad discretion of the trial court and may
8 be ordered in any amount subject only to the moving party's needs and the other party's ability to
9 pay." See *Marriage of Murray* (2002) 101 Cal.App.4th581.

10 2) Here, Wife submitted documentary evidence of her need and Husband's past ability to pay;
11 however, Husband states, under penalty of perjury, that he was laid off from his job as of 7/1/26
12 and incurred significant legal debt due to a DUI charge. Wife did not present any conflicting
13 evidence of Husband's current ability to pay.

14 3) As such, the Court finds good cause to **CONTINUE Wife's request for temporary spousal**
15 **support to 10/8/26 at 9 AM in Dept. 403.**

16 4) At least 10 days in advance of the hearing, Husband shall provide documentary evidence that he
17 was laid off from his job as of 7/1/26.

18 5) The Court reserves jurisdiction over temporary spousal support retroactive to 6/23/26 (i.e., the
19 filing date of Wife's Request to Order).

20 6) The Court will prepare the Findings and Order After Hearing.
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